

24STCV25389 24STCV25389

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-21

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Case Number: 24STCV25389 Hearing Date: July 21, 2026 Dept: 731

CENTERSTONE SBA LENDING, INC., a California corporation, Plaintiff, v. CROWNCO INC., a California corporation; CHARLES E. MORRISON, an individual; DOES 1-100, inclusive, Defendants.

CASE NO: 24STCV25389 [TENTATIVE] ORDER RE: PLAINTIFF'S MOTION FOR SUMMARY ADJUDICATION AS TO DEFENDANTS Dept. 731 9:30 a.m. July 21, 2026

Moving Party: Plaintiff, Centerstone SBA Lending, Inc.

Opposing Party: None

Notice: Defective

Plaintiff Centerstone SBA Lending, Inc. sues Defendants Crownco Inc. and Charles E. Morrison pursuant to a March 30, 2024, Complaint alleging four causes of action arising from allegations that Defendants breached a Small Business Administration ("SBA") loan agreement entered by the parties by failing to repay, as of the time the Complaint was filed, \$1,647,808.09 to Plaintiff, plus interest.

Defendant Morrison via counsel answered the Complaint on November 18, 2024, and filed a substitution of attorney on May 18, 2026. Crownco Inc. filed a notice of bankruptcy stay on November 18, 2024, on which the record fails to reflect an update beyond the Court's minutes on May 27, 2025.

Before the Court is Plaintiff's unopposed motion for summary adjudication of the first cause of action alleged in the Complaint, as against Defendant Charles E. Morrison. Although unopposed, the motion suffers from procedural defects requiring denial without prejudice.

The Court identifies two procedural defects requiring denial.

First, Plaintiff failed to file a valid proof of service establishing timely service of the motion. Without competent evidence demonstrating compliance with the notice requirements of Code of Civil Procedure section 437c(a)(2), the Court cannot determine whether the statutory notice requirements have been satisfied.

Second, the motion does not comply with California Rules of Court, rule 3.1350(b). Rule 3.1350(b) requires that the specific cause of action, affirmative defense, claim for damages, or issue of duty be stated in the notice of motion and repeated verbatim in the separate statement. Plaintiff's separate statement does not repeat the issue identified in the notice of motion

as required by the rule.

Accordingly, Plaintiff's motion is DENIED, without prejudice.

Plaintiff is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 21, 2026 _____

MARK C. KIM

Judge of the Superior Court